

#	Case Name	Tentative
		<u>Costs</u>. The court finds that all \$1,556.40 in costs were reasonably incurred and are reasonable in amount. (See Civ. Code, § 1794, subd. (d); <i>Warren v. Kia Motors America, Inc.</i> (2018) 30 Cal.App.5th 24, 42-43 [the phrase “costs and expenses” covers items not included in the statutory definition of “costs” set forth in Code Civ. Proc., § 1033.5]; see also Code Civ. Proc., § 1033.5, subds. (a)(1) [filing fees are recoverable], (3) [deposition costs are recoverable], (14) [efiling fees are recoverable], (c); Morrow Decl. ¶ 9, Ex. 2 [listing costs incurred in this action under penalty of perjury].) Defendant has failed to demonstrate otherwise. (See <i>Ladas v. California State Auto. Ass’n</i> (1993) 19 Cal.App.4th 761, 774 [burden].) The court orders this case dismissed, without prejudice with the court retaining jurisdiction to enforce the terms of the settlement pursuant to C.C.P. § 664.6. The OSC scheduled for July 27, 2026 is vacated. Plaintiff shall give notice of this ruling.
54.	The Summit at Turtle Ridge Community Association v. Sheng 2025-01494328	Cross-Defendant The Summit at Turtle Ridge Community Association’s motion for attorney fees and costs against Cross-Complainant Jie Sheng is GRANTED. (Code Civ. Proc. §425.16, subd. (c)(1).) Cross-Defendant Leyla Dennis’ motion for attorney fees and costs against Cross-Complainant Jie Sheng is GRANTED. (Code Civ. Proc. §425.16, subd. (c)(1).) Cross-Defendant Summit filed a special motion to strike Cross-Complainant Jie Sheng’s First Amended Cross-Complaint pursuant to Code Civ. Proc. §425.16. On 3/16/26, the Court granted the motion in full. Cross-Defendant Dennis filed a special motion to strike Cross-Complainant Jie Sheng’s First Amended Cross-Complaint pursuant to Code Civ. Proc. §425.16. On 3/16/26, the Court granted the motion in part and denied the motion in part. Pursuant to Code Civ. Proc. § 425.16, subd. (c), a party who brings a successful motion to strike is entitled to mandatory attorney fees. (<i>Ketchum v. Moses</i> (2001) 24 Cal. 4th 1122, 1131.) Additionally, a party whose motion to strike is partially successful may still be a prevailing party and recover fees connected with the successful aspects of the motion, provided the moving party gained a practical benefit by prevailing on the motion. (See <i>Moran v. Endres</i> (2006) 135 Cal.App.4th 952, 954; <i>Jackson v. Yarbray</i> (2009) 170 Cal.App.4th 75, 82.)

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		This does not, however, mean that the prevailing party is entitled to receive whatever fee award it requests. (<i>Christian Research Institute v. Alno</i> (2008) 165 Cal. App. 4th 1315, 1321.) The attorney's fees awarded must be reasonable. (<i>Ketchum, supra</i>, 24 Cal. 4th at 1133; <i>Cabral v. Martins</i> (2009) 177 Cal. App. 4th 471, 491 ("[A] defendant who brings a successful special motion to strike is entitled only to reasonable attorney fees and not necessarily to the entire amount requested.").) After reviewing Cross-Defendants' evidentiary submissions in support of the Motions, the Court finds that attorney Le's hourly rate of \$485/hour is reasonable and in line with what a similarly experienced attorney practicing in this market would charge. (Le Decl., ¶¶ 3-5.) With respect to the number of hours reasonably expended, counsel's verified time records should be "entitled to credence in the absence of a clear indication the records are erroneous." (<i>Horsford v. Board of Trustees</i> (2005) 132 Cal. App. 4th 359, 396.) The court finds that counsel's breakdown of the time spent on the motions to strike demonstrate that the hours sought were reasonable and necessary to bring the motions and the costs Cross-Defendants seek to recover are justified. Furthermore, with respect to the Dennis motion, counsel has appropriately adjusted the time records to reflect recovery only for time expended in connection with the successful aspects of the motion. Cross-Complainant has not opposed the motions and offers no argument as to the reasonableness of the hourly rate or hours expended in connection with the motions. Accordingly, the motions are granted in full. Cross-Complainant shall pay Cross-Defendant The Summit at Turtle Ridge Community Association \$38,764 in fees and costs, consisting of \$38,654.50 (70.7 hours at \$485/hour) in attorneys fees and \$109.66 in costs. Cross-Complainant shall pay Cross-Defendant Leyla Dennis \$28,617.15 in fees and costs, consisting of \$28,120.30 (57.98 hours at \$485/hour) in attorneys fees and \$496.85 in costs. According to Cross-Complainant's conditional non-opposition, the parties have apparently entered into a stipulation regarding the issue raised in these motions. The parties shall be prepared to discuss the substance of the stipulation and

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		proposed order as it pertains to any collection efforts related to this court's order of attorney fees and costs. Moving Party shall provide notice of these rulings.
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56.	Bauer v. Likhterman 2021-01214086	The court orders the motion for charging order OFF CALENDAR, as plaintiff has filed an acknowledgment of satisfaction of judgment. (ROA 210).
57.	Baah v. Monetary Inquisition Group LLC 2024-01393282	Plaintiff Alex Baah's motion for reconsideration is DENIED. "It is settled law that a motion for reconsideration is ineffectual if it is filed after entry of judgment" and that Code of Civil Procedure section 1008 "applies only to applications for interim orders." (<i>Marshall v. Webster</i> (2020) 54 Cal.App.5th 275, 281; see <i>Branner v. Regents of University of California</i> (2009) 175 Cal.App.4th 1043, 1048 ["A motion to reconsider is not valid if it is filed after the final judgment is signed"].) "The issue is jurisdictional. Once the trial court has entered judgment, it is without power to grant reconsideration." (<i>APRI Ins. Co. v. Superior Court</i> (1999) 76 Cal.App.4th 176, 181; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 859, fn. 29 ["After entry of judgment, the superior court [does] not have jurisdiction to entertain or decide a motion for reconsideration"].) Plaintiff shall give notice of this ruling.
58.	Rogers v. Guzman 2023-01301897	The hearing on the claim of exemption by plaintiff / judgment debtor / claimant William Rogers and claimant Celestina M. ("Tina") Rogers, and the opposition by defendants / judgment creditors Angel Lupe Guzman and Arijet Corporation is CONTINUED to August 10, 2026 at 2:00 p.m. in Department C28. First, there is no proof of service of defendants / judgment creditors' Opposition to the Claim of Exemption (ROA 613). (Code Civ. Proc., §§ 703.550, subd. (a), and 703.570, subd. (b).) Second, there is no record that any claim of exemption has been filed with the court. (Code Civ. Proc., §§ 703.550, subd. (a) ["Upon the filing of the copies of the notice of opposition and notice of motion, the levying officer shall promptly file the claim of exemption with the court"], 703.580, subd. (c))